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# N.Y. Local Finance Law Section 37.00

## Referenda on bond resolutions or capital note resolutions

- school districts
- 

### a.

In a school district other than a city school district a bond resolution or a capital note resolution shall not be adopted by the finance board thereof unless a tax to be collected in installments shall have been voted in the manner provided in the education law, as amended from time to time, for the object or purpose for which such resolution authorizes the issuance of obligations. The foregoing provisions of this paragraph shall not apply to:

#### 1.

A bond resolution or capital note resolution adopted by the finance board of a school district authorizing the issuance of bonds or capital notes for the payment of all or part of a judgment, award or a compromised or settled claim against the school district for the acquisition of land or rights in land, to the extent that the amount of such judgment, award or claim exceeds the amount authorized to be expended for such acquisition of land or rights in land, provided such excess amount does not exceed fifteen per centum of the amount so authorized to be expended.

#### 2.

A bond resolution which authorizes the issuance of bonds pursuant to section 92.00 of this chapter where prior to the issuance by a school district of the bond anticipation note or notes to be refunded by such bonds a tax to be collected in installments has been voted in the manner provided in the education law for the object or purpose for which such note or notes were issued.

#### 3.

A bond resolution or capital note resolution which authorizes the issuance of bonds or capital notes for the payment of judgments, or compromised or settled claims against such a school district, or awards or sums payable by such a school district pursuant to a determination by a court, or an officer, body or agency acting in an administrative or quasi-judicial capacity.

## **b.**

In a city school district a bond resolution adopted by the finance board thereof shall not become effective unless a proposition approving such resolution shall have been adopted at a special or annual school district meeting held in accordance with article forty-one and fifty-three of the education law. The foregoing provisions of this paragraph shall not apply to a bond resolution authorizing the issuance of bonds:

### **1.**

For the payment of judgments, or compromised or settled claims against such city school district, or awards or sums payable by such city school district pursuant to a determination by a court, or an officer, body or agency acting in an administrative or quasi-judicial capacity; or

### **2.**

Where a tax to be collected in installments has been voted in the manner provided in the education law, prior to July first, nineteen hundred fifty-one, for the object or purpose for which such resolution authorizes the issuance of bonds; or

### **3.**

Where such resolution authorizes the issuance of bonds pursuant to section 92.00 of this chapter and prior to the issuance by a school district of the bond anticipation note or notes to be refunded by such bonds a tax to be collected in installments has been voted in the manner provided in the education law for the object or purpose for which such note or notes were issued. Notwithstanding the foregoing provisions of this paragraph, the finance board of a city school district may provide in any bond resolution or capital note resolution that such resolution, shall not become effective unless a proposition approving such resolution is adopted at a special or annual district meeting held in accordance with article forty-one and fifty-three of the education law.

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*Source: Section 37.00 — Referenda on bond resolutions or capital note resolutions; school districts,*  
<https://www.nysenate.gov/legislation/laws/LFN/37.00> (updated Sep. 22, 2014; accessed Aug. 22, 2026).

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§ 37.00. *Referenda on bond resolutions or capital note resolutions's source at [nysenate.gov](http://nysenate.gov)*

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*Location:* `https://newyork.public.law/laws/n.y._local_finance_law_section_37.00`

*Original Source:* *Section 37.00 — Referenda on bond resolutions or capital note resolutions; school districts*, `https://www.nysenate.gov/legislation/laws/LFN/37.00` (last accessed Aug. 22, 2026).

**Blank Outline Levels**



The legislature occasionally skips outline levels. For example:

(3) A person may apply [...]

(4)(a) A person petitioning for relief [...]

In this example, **(3)**, **(4)**, and **(4)(a)** are all outline levels, but **(4)** was omitted by its authors. It's only implied. This presents an interesting challenge when laying out the text. We've decided to display a blank section with this note, in order to aide readability.

**Trust but verify.** [\*Here is the original source for section 37.00\*](#)

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